

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2301619

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: DEVIN KENNEDY TAYLOR

VS

DEFENDANT: ERNEST WARE III, ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff Taylor (“Taylor”) filed a motion to compel against Defendant Ware (“Ware”) asserting that Ware had failed to provide responses to her requests for admission and requests for production of documents. She also requested sanctions.

Plaintiff asserts that on April 14, 2026 and April 15, 2026, she served Defendants with Requests for Admission, Set Three and Requests for Production of Documents. She did not file a Separate Statement. Nor did Taylor attach a copy of the discovery propounded. Taylor alleges that no responses were served.

As set forth in Exhibits E and F to the Du Declaration, Ware served his verified responses to this discovery on May 18, 2026, which appear to be timely under Code of Civil Procedure section 1010.6(a)(1)(B).

Taylor has not filed a reply and does not otherwise rebut Ware’s assertion of timeliness. On this basis, the motion is denied.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0000673

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: ASHLEY SHAH

vs.

DEFENDANT: NITIN SHAH, ET AL

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM
2) MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM
3) MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff Ashley Shah (“Plaintiff”) file a motion to compel responses to Plaintiff’s Form Interrogatories, Set Two, and Plaintiff’s Supplemental Request for Production of Documents, and Supplemental Interrogatories. Plaintiff also filed a motion to deem Requests for Admission admitted. Plaintiff also requests sanctions in the amount of \$3,660. Defendant was served with notice of these motions, including the Court’s notice of a continuance from August 7, 2026 to August 26, 2026. No opposition was filed.

A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants the motions in light of the non-opposition. However, in light of the non-opposition, the Court deems 6 hours of time to be reasonable instead of 8 hours. Sanctions are therefore ordered in the amount of \$2,700 to be paid within 30 days of service of this order. Failure to comply with this order and any previous orders may lead to further sanctions in this matter.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in